MISH 02
Drug-Free Workplace

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DRUG FREE WORKPLACE

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	2	04/07/2026	Jeremy Thamert

1.0 POLICY STATEMENT

1.1 MH Construction Inc. maintains a strong commitment to all workers on its projects to: provide a safe work environment, protect their health and safety, and promote high standards of performance.

1.2 The Company has established a comprehensive Drug and Alcohol Policy. The primary objective is to promote and maintain a safe and healthy work environment free from the harmful effects of alcohol and drugs.

1.3 Drug and alcohol use costs the American economy billions of dollars annually in lost productivity, increased absenteeism, poor performance, on-the-job injuries, higher medical costs, and rising thefts.

1.4 All personnel are expected to report to work "Fit for Duty" — in a condition to perform their duties safely and effectively. MH Construction will not tolerate drug or alcohol use on or affecting its jobsites or property.

2.0 POLICY ADMINISTRATION

2.1 All MH Construction employees not covered under a bargaining union drug and alcohol program will be required to read and agree to this policy as a condition of employment.

2.2 Prohibited Substances, Articles, and Conduct

2.2.1 Alcohol: Any beverage or substance containing alcohol. Possession, transfer, offering, use, or being under the influence while on company property, premises, jobsites, or company time is strictly prohibited.

2.2.2 Drugs: Any substance which may impair mental or motor function including illegal drugs, controlled substances, designer drugs, synthetic drugs, look-alike drugs, and prescription drugs. Possession, use, or being under the influence is strictly prohibited.

2.2.2.1 Prescription Drugs: Must be taken within the limits of prescribed instructions. Employee must report use to the Safety Director prior to beginning work.

2.2.2.2 Illegal Drugs: Any drug not prescribed to that specific individual, or prescription drugs that have expired or are not taken per physician direction.

2.2.3 Contraband: Any items or actions considered contraband as defined by state or federal laws for illegal drugs and associated items.

2.3 Testing of Employees

2.3.1 Employees will be required to undergo a body fluids test under the following circumstances:

PRE-EMPLOYMENT

Prior to the start of, and as a condition of employment on an MH Construction contract or properties, prospective workers will be required to provide a specimen to test for the presence of prohibited substances. Presence of one or more prohibited substances or inconclusive test results will be cause for rejection of employment.

RANDOM

MH Construction employees will be placed into a random drug and alcohol testing pool at a rate equal to 30 percent of the group population for each 12-month period. Selection will be performed by a business-sensitive computerized system.

⚠ **3-HOUR RULE — TIME-CRITICAL FIELD ACTION**

Upon notification, the employee has exactly **3 HOURS** to report to the designated testing facility and provide a sample.

FAILURE TO COMPLY WITHIN THE 3-HOUR WINDOW = DEEMED POSITIVE

Failure to appear at the testing location within 3 hours shall be treated as a positive test result — subject to immediate disciplinary action (§2.6).

POST ACCIDENT

Post accident/incident drug and alcohol testing will be performed on all involved personnel. Escorting of personnel to the collection facility will be arranged by supervision. Testing shall be completed as soon as practical following the incident.

REASONABLE SUSPICION

When MH Construction supervision has reason to suspect employee drug use or alcohol intoxication, testing will be performed. Supervision must document observable signs and symptoms prior to initiating testing.

2.4 Testing Procedures

2.4.1 All body fluids tests will be performed in accordance with the Department of Health and Human Services (HHS) Mandatory Guidelines. Basic tests giving a positive indication above the thresholds in ADDENDUM "A" will be confirmed by an alternate pre-approved method as outlined in ADDENDUM "B".

2.4.2 An employee suspected of being under the influence shall be tested and suspended until test results are reviewed. If a test proves negative, the employee will be reinstated with back pay.

2.4.3 Workers testing positive at 0.02 BAC will be sent home on the first infraction and suspended on the second. Workers testing positive at 0.04 BAC are subject to immediate suspension.

2.5 Prescription Drugs

2.5.1 Employees using a prescription drug which may impair mental or motor functions shall inform the Safety Coordinator. The Company may place such persons in a less hazardous assignment or on temporary medical leave until released as fit-for-duty by the prescribing physician.

2.6 Disciplinary Action

2.6.1 Applicants testing positive/inconclusive will not be hired. Re-hire eligibility requires one year plus completion of a rehabilitation program and a negative test result.

2.6.2 Workers found using or selling drugs on company premises or company time will be subject to immediate termination and are ineligible for re-hire.

2.6.3 Workers found under the influence while operating equipment or driving any company vehicle will be subject to immediate termination.

2.6.4 Workers who violate Contraband Laws in any way will be subject to immediate termination.

2.6.5 Workers who test positive in both the basic and positive test verification will be given the opportunity to select immediate termination or rehabilitation and treatment (refer to Section 2.7).

2.7 Rehabilitation and Treatment

2.7.1 If eligible, the employee will be suspended without compensation during counseling and treatment. All counseling, treatment, and follow-up drug testing expenses are the responsibility of the employee.

2.7.2 The employee may return to work only after signing a "Return to Work Agreement" and will be subject to follow-up drug tests during a mandatory one-year probationary period.

2.7.3 Individuals will be encouraged to seek help for a drug or alcohol problem before it deteriorates into a disciplinary matter.

2.7.4 If an individual voluntarily notifies their supervisor of a substance abuse problem, the Company will assist in locating counseling and treatment services.

2.8 Confidentiality

All actions taken under this policy will be CONFIDENTIAL within the employer and the union (if any) representing the employee.

3.0 SITUATIONS NOT COVERED BY THIS POLICY

3.1 Situations not specifically covered by this policy will be dealt with on a case-by-case basis. Corrective or disciplinary action will be determined by the MH Construction Safety Coordinator and their Division Manager.

4.0 ARREST OR CONVICTION UNDER CRIMINAL DRUG STATUTE

4.1 Individuals must notify the MH Construction Safety Coordinator within five (5) days of an arrest or conviction of a criminal drug statute. Failure to do so will result in immediate removal from the Company.

5.0 RESERVATION OF RIGHTS

5.1 The Company reserves the right to revise this policy at any time. Nothing in this policy alters an individual's employment status.

6.0 AMENDMENTS TO POLICY

6.1 This policy may be amended by MH Construction at any time. All amendments will be communicated to employees in writing.

7.0 TESTING PROCEDURES — FIELD OPERATIONS

7.1 Prior to employment, personnel shall complete a quick or instant test prior to showing up at the job location. Inconclusive results will be cause for rejection of employment.

7.2 Drug and alcohol testing shall be required as soon as practical subsequent to work-related accidents.

RANDOM TESTING — FIELD PROCEDURE

Employees will be notified of when and where to take the drug test. Testing shall be done during working hours.

> ⚠ **3-HOUR RULE — SUPERVISOR ENFORCEMENT REMINDER**
>
> Testing **MUST** be completed within 3 HOURS of employee notification.
>
> **IF TESTING IS NOT COMPLETE WITHIN THE 3-HOUR WINDOW = DEEMED POSITIVE**
>
> Supervisors: Document the exact notification time. Escort the employee to the collection facility. Do not allow the window to expire.

7.5 Reporting of test results shall be handled discretely between the medical facility and the MH Construction Safety Coordinator. Results shall be reported as NEGATIVE, POSITIVE, or INCONCLUSIVE.

7.8 In the event of positive test results on both the basic and positive verification tests, the employee may have, within three (3) days, the same specimen retested at a different licensed laboratory at the individual's expense.

7.9 Results of the described tests are to be held in strictest CONFIDENCE between the MH Construction Safety Director and the medical facility.

ADDENDUM "A" — THRESHOLD (CUTOFFS)

The following table defines the screening and confirmation cutoff levels (in ng/mL) for all substances tested under the MH Construction Drug and Alcohol Policy.

Drug / Substance	Screening Cutoff (ng/mL)	Confirmation Cutoff (ng/mL)
Amphetamines	1,000	500
Barbiturates	200	200
Benzodiazepines	200	200
Cannabinoids (THC)	100	15
Cocaine Metabolite	300	150
Methadone	300	150
Opiates	2,000	2,000
Phencyclidine (PCP)	25	25
Propoxyphene	300	150
Alternate Amphetamines	500	500
6-Mono Acetyl Morphine	10	10
Masking Agent	N/A	N/A

Reference: HHS Mandatory Guidelines for Federal Workplace Drug Testing Programs. All testing conducted in accordance with DOT 49 CFR Part 40 and OSHA 29 CFR 1926.

ADDENDUM "B" — LABORATORY PROCEDURES

EMIT Method — Basic Screening Test

The name EMIT stands for Enzyme-Multiplied Immunoassay Technique. This technique is used for the microanalysis of drugs in biological fluids. Urine is mixed with two reagents. Reagent One contains antibodies specific to the particular drug, the coenzyme nicotinamide adenine dinucleotide (NAD), and the substrate G.6P (glucose 6 phosphate). Reagent Two contains a drug derivative labeled with enzyme G.6PDh. The enzyme that remains unbound relates directly to the concentration of drug in the specimen. The active enzyme converts NAD to NDAH, resulting in an absorbance change measured spectrophotometrically.

GC/MS — Positive Test Verification

GC/MS is used as confirmation of positive EMIT screens. It allows identification of the specific drug involved and provides the ability to quantitate the cannabinoid and urine alcohol level present.

GC/MS is an analytical technique that separates substances based on their differential migration rate through a gas chromatographic column and virtually unequivocally identifies them based on their mass spectrum and migration time. The technique is the generally accepted reference method for legal applications.

The GC/MS test is performed with a Hewlett-Packard model 5970-B, which uses electron bombardment to produce a "fingerprint" mass spectrum of each analyte as it elutes from the capillary column. An on-board computer correlates the mass spectrum with a stored library of compounds and produces a report of the probable substances in the specimen.

FORM 02-A Applicant Consent to Drug & Alcohol Testing

I hereby consent and agree to give specimens of my body fluids* at a medical facility designated by MH Construction for transmittal and testing by an approved testing laboratory.

It is my understanding that the ultimate testing facility is licensed by the State, and body fluid* specimens will be tested to detect the presence of alcohol and/or other drugs in my body. All testing will be in accordance with standards currently disseminated and approved by the National Institute on Drug Abuse.

In addition to testing at the initial time of entry onto the job site, in the event I am directly involved in a work-related accident, or as part of on-site drug screening, or if there is reason to suspect my use of drugs or alcohol intoxication, I agree and consent to provide specimens of my body fluids* for testing.

It is agreed that, upon request, I will be furnished results of tests performed on my body fluids* specimen. The testing laboratory is only authorized to confirm to MH Construction whether test results are POSITIVE or NEGATIVE in accordance with predetermined threshold levels.

I acknowledge that I have received, read, and understand a copy of MH Construction's Drug and Alcohol Policy. I understand that refusal to submit to the alcohol and drug screening test will constitute voluntary withdrawal of my application.

**Body fluids tests will normally utilize only urine specimens. Blood withdrawal will be exercised only in situations involving an injury accident where the employee is rendered unconscious.*

Applicant Name (Print):			
Applicant Signature:			
Witness Signature:		**Today's Date:**	
Applicant SSN (Last 4):		**Employer:**	

FORM 02-B Return-to-Work Agreement

To be read, understood, and signed by employees returning to active employment after disciplinary action resulting from violation of MH Construction's Drug and Alcohol Policy.

I understand and agree that my continued employment with MH Construction is conditioned upon my being fit for duty, and not working under the influence of alcohol or drugs at any time.

I hereby consent and agree to give specimens of my body fluids* at a medical facility designated by MH Construction for transmittal and testing by an approved testing laboratory.

I acknowledge that I will be under a one-year probationary period commencing on the date of my return to active employment with MH Construction. I agree and consent to provide specimens of my body fluids* for testing to determine the presence of alcohol and/or drugs whenever requested by the Company during my one-year probationary period.

I acknowledge that I have read and understand MH Construction's Drug and Alcohol Policy. I agree to cooperate fully with any and all Company drug and alcohol testing requests. I understand that my failure to cooperate fully, or submit to a drug or alcohol test when requested, will result in my immediate termination of employment with MH Construction.

**Body fluids tests will normally utilize only urine specimens.*

Employee Name (Print):			
Employee Signature:			
Supervisor Signature:		**Today's Date:**	
Witness Signature:		**HR Representative:**	

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